



DECLARATION OF RESTRICTIONS, COVENANTS AND
EASEMENTS for SNOWBLAZE RECREATIONAL TRACTS DIVISION I
SPOKANE COUNTY

✓ Mt. Spokane Chair Lift Company, a Washington corporation, is the owner of the real property described in the Plat of Snowblaze Recreational Tracts Division I, as recorded in Spokane County, Washington, Plat Book 11, Page 93 & 94. In order to provide for a plan of land use, road maintenance, a private water system, other utilities and other facilities incident to the development of the real property in the Plat of Snowblaze Recreational Tracts Division I, and such other properties as may hereafter be included in the plan, if any, the undersigned does hereby declare and establish the following restrictions, covenants and easements appurtenant:

ARTICLE I - DEFINITIONS

1. Real Property. The words "Real Property" shall refer to the real property included within any Final Plat as defined herein.
2. Final Plat. The word "Final Plat" shall refer to the Final Plat of Snowblaze Recreational Tracts Division I, and any other plat of adjacent real property which may hereafter be made subject to the provisions hereof by the recording of additional Divisions of said Plat of Snowblaze Recreational Tracts.
3. Lot or Lots. The word "Lot" or "Lots" shall refer to Lots as shown on said Plat, of Snowblaze Recreational Tracts Division I, all as approved by Spokane County.
4. Committee. The word "Committee" shall refer to the Architectural Control Committee as created hereby.
5. Club. The word "Club" shall refer to the Snowblaze Recreational Club Inc., a nonprofit Washington corporation formed for the purpose of providing utilities services and recreational facilities to its members,

including condominium owners and residents of lots and tracts, as herein defined.

6. Declarant. The word "Declarant" shall refer to Mt. Spokane Chair Lift Company, a Washington corporation, its successors or assigns.

7. Club Properties. The words "Club Properties" shall mean Block 3, Lot 1, Block 4, Lot 1, and Block 5, Lot 1, all property and structures located thereon owned or leased by the Declarant and or leased to Mt. Spokane Development Company for Club purposes for the common use and enjoyment of all owners or members of the Club.

ARTICLE II - LAND USE RESTRICTIONS

1. Dwellings. No more than one (1) detached dwelling structure shall be permitted on any one lot, nor shall any lot be further subdivided for the purposes of creating additional lots or building sites without filing a replat. Except developer may use a lot or lots for those purposes provided for in Section 4.04A 030c, Spokane County zoning ordinance.

2. Lot Maintenance. Each Lot shall be maintained in a clean, sightly condition at all times and be kept free of litter, junk, trash, rubbish, garbage, weeds, debris, containers, equipment and building materials. However, the reasonable keeping of equipment and materials on a Lot during construction on such Lot shall be permitted but not longer than 6 months. All refuse from use of a Lot shall be kept in sanitary containers which shall be concealed from view and regularly emptied by Club or owner thereof. Should any lot owner fail to remove any such litter, junk, trash, rubbish, garbage, weeds, and debris, the Club shall have the right to enter upon the land and to do any and all acts in its opinion necessary to remove the same and charge the expenses of removal to said Lot owner. If both the Lot owners and Club fail to maintain the lots, buildings, or structures and or Club areas then Declarant, his successors and assigns shall be free to enter upon said Lots and/or Club areas for the purpose of maintaining same

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and shall charge the cost of maintenance to the Club and Lot owners collectively. If such charges remain unpaid for a period of 60 days, declarant, his successors and assigns may claim a lien on said Lot or Club areas by following procedures as set forth in Article V, paragraph 4.

3. Club Areas. No structures either permanent or temporary, including fences, shall be permitted on any lands designated on the Final Plat as Block 3, Lot 1, Block 4, Lot 1, and Block 5, Lot 1, without the approval of the Committee. It is the desire and intent that the Club Areas shall be preserved in their natural state for the use and enjoyment of all with a minimum of structural improvements or alteration. In no case will habitable structures be allowed herein, without written consent of the Committee and the Spokane Planning Director and the Spokane County Health District.

4. Animals. No animals shall be kept or permitted on the Real Property except for household pets which shall not unreasonably interfere with the use and enjoyment of any other part of the Real Property. No commercial raising, breeding, training or dealing in animals shall be conducted on or from any Lot, and as otherwise restricted by Spokane County zoning ordinance Section 404A 080e.

5. Firearms. No firearms for purpose of hunting or target practice shall be permitted or used on the Real Property without written consent of the developer.

6. Trees and Natural Vegetation. To avoid unnecessary and irreplaceable damage to existing terrain, living vegetation, trees and subsurface drainfield areas and replacement areas, the following restrictions are hereby imposed: No vehicle or equipment will be allowed on any lot or lots during construction which (as previously determined by both the Committee and the Spokane County Planning Director or his Designatee*), would cause permanent damage to said terrain, living vegetation and/or tree cover. Furthermore, independent of any building or construction

program, no person will be allowed to cut, clear or alter said existing terrain, living vegetation and/or tree cover, which is located beyond the approved building site and drainfield areas without previous approval from the Committee.

*Further, either the Committee or the Spokane Planning Director may require of the lot owner or his representative, submission of additional information which would assist them in determining the unavoidable necessity for altering or causing permanent damage to approved and proposed building site. Said information may include, among other things, cross sections, profiles, landscape plans, and alternate construction techniques. If damage is deemed unavoidable; and, in the opinion of both the Committee and Planning Director, restoration would enhance, protect or preserve the natural character of these lots, or the real property in general, they may request submission of landscape plans which when implemented would restore the damaged area and protect the existing natural amenities inherent in the lot or lots. The Spokane County Planning Director may require a bond in an amount to be determined by the Director to insure restoration (of the damaged areas) in accordance with the approved landscape plan. Any violation of the above will result in possible civil action with restoration by Mt. Spokane Chair Lift, Inc. at the lot owner's expense, as assessed by Mt. Spokane Chair Lift, Inc.

7. Vehicles. No truck, boat, camper, trailer or other vehicle and no goods, wares, equipment or paraphernalia shall be maintained on the right of way.

8. Parking. Vehicles shall only be parked or kept in areas within the right of way and access easements except as provided by the Committee and approved by Spokane County Planning Director. If any vehicle is parked or kept in any prohibited area, the Club or Declarant, at its option, shall have the right to remove the same at the expense of the owner thereof.

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9. Signs. No sign, billboard, or advertising structure shall be located, placed or maintained on the Real Property. However, with the prior written consent of the Committee, one sign of approved style, not exceeding four (4) square feet, may be placed on a Lot improved with a residence to offer such property for sale. Declarant is granted and reserves the right, for itself, its agents, successors and assigns, to place signs on Real Property to indicate portions thereof for sale or lease. Any sign on the Real Property in violation hereof may be removed from the Real Property by the Committee.

10. Noxious or Offensive Activity. No noxious or offensive activity shall be permitted or carried on upon any Lot, nor shall anything be permitted on a Lot that may be or become a nuisance or unreasonably interfere with the use or enjoyment of any part of the Real Property.

11. Laws and Standards. Each Lot owner shall be responsible for the observance of all federal, state, and county laws and health standards with regards to his individual Lot or Lots. In the event there is a violation of any law or standards, the Declarant, his successor and assigns, if correction is not made by the Lot owner, shall have the right to meet the standard or correct the violation. The cost or correcting the violation or meeting the standard shall be a charge against said Lot property owner. If the Lot owner fails to pay such charge within 60 days after it becomes due, then the Declarant, his successors and assigns may claim a lien upon said Lots by following the procedures set forth in Article V, Paragraph 4.

ARTICLE III - BUILDING RESTRICTIONS

1. Style. Each dwelling and any appurtenant structures placed on a Lot shall conform strictly to a uniform pattern of external appearance as defined in this Article. The intent of these declarations is to require that such external appearance be of the Pacific Northwest Con-

temporary design. The provisions of this Article shall be strictly construed to accomplish this purpose against the free use of the property. In the event of question of interpretation of whether the external appearance of any structure placed or proposed to be placed on a Lot shall conform to this Article, any and all parties interested in the Real Property agree to be bound by and comply with the decisions of the Committee. At the time of recording these provisions the Committee has been furnished with drawings of dwellings which conform to these provisions in external appearance and such drawings may be used in guiding any decision of the Committee hereunder. The Committee shall furnish on written request of any party interested in a Lot copies of such drawing for which the Committee may require the payment of a reasonable charge to cover the cost of reproduction.

2. External Appearance Requirements. In conformity with the foregoing, no dwelling or appurtenant structures shall be erected, placed or permitted upon any Lot unless its external appearance shall conform to the following:

a. Roofing and siding materials shall not be of a shiny nature nor of any substance as tarpaper, shake roofs and cedar siding shall be preferred.

b. The dwelling can have any number of stories so long as the height of the dwelling does not interfere with the view of other Lots or exceeds applicable Spokane County zoning requirements.

c. All colors shall be compatible with the natural setting of the area and must be submitted to the Committee for approval.

3. Restrictions. In addition to the foregoing external appearance requirements, no dwelling or appurtenant structure shall be placed, erected or permitted on any Lot unless it shall comply with the following:

a. Each dwelling shall be of permanent construction and have not less than eight hundred (800) square feet of fully enclosed area devoted to living purposes, that is excluding decks.

b. No dwelling or appurtenant structure shall be placed or erected in violation of applicable zoning regulations. Any deviations are subject to approval through appropriate procedures perscribed by Chapter 4.25 of the Spokane County zoning ordinance.

c. Each dwelling structure shall be equipped with sanitary plumbing facilities within the structure, connected to a septic tank and drainfield system of sewage disposal, designed, located, and constructed in accordance with the plans approved and recorded with the Spokane County Health District, unless otherwise amended by the Committee and the Spokane County Health District. Said drainfield shall be hand trenched according to the recorded plans. In the event it is feasible to use motorized equipment to install either a septic tank or drainfield, it shall be in accordance with Article II, Paragraph 6 as heretofore provided.

d. Prior to erecting or placing any structure upon a Lot or altering the external appearance of any existing structure, the plans and specifications and site plan and/or other documents as may be required under Article II, Paragraph 6 shall first be submitted to and approved by the Committee as hereafter provided, and the structure as erected, maintained or altered on a Lot shall conform to such approved plans and specifications approved by the Spokane County Planning Director and Health District.

4. Construction. Once construction or alteration is commenced on a Lot such construction or alteration shall be diligently persued from its commencement until completion thereof, but in any event the exterior or visible alteration shall be completed no later than one (1) year after commencement of the construction alteration unless otherwise approved by

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the Committee.

ARTICLE IV - ARCHITECTURAL CONTROL COMMITTEE

1. Organization. There shall be an Architectural Control Committee consisting of 2 members. The first member of such Committee shall be the President and Secretary of Declarant or their appointees. The address of the Committee shall be, Route 1, Box 416 B, Mead, Washington, until written notice of change of address is filed of record with the Auditor of Spokane County. In the event of any vacancy on the Committee, the remaining members may designate a new member to fill such vacancy. When 50% of the Lots have been developed the Lot owners of record shall appoint an architectural committee to replace the first members.

2. Plans and Specifications. All plans and specifications required to be submitted to the Committee shall be submitted by mail to the address of the Committee in duplicate, shall be in writing, shall contain the name and address of the person submitting the same, and shall set forth the Lot involved and the following with respect to the proposed structure: the location of the structure upon the Lot, the elevation of the structure with reference to the existing and finished Lot grade, the general design with exterior elevation drawings of all exterior sides, the interior layout, the exterior finish materials and color including roof materials and such other information as may be required by the Committee to determine whether such structure conforms with these restrictions.

3. Authority. In addition to its discretionary authority granted elsewhere herein, the Committee shall have authority to make determinations involving esthetic considerations relating to structures appurtenant to dwellings such as height, configurations, design, location and appearance of out buildings, walls, and other appurtenant facilities. Such determinations shall be binding on all persons interested. There shall be no fences permitted on any Lot, provided, however, that the

Committee may permit fencing if such is needed for the protection of the inhabitants of the Real Property.

4. Approval of Plans. As a condition to approval the Committee shall require that a written certificate accompany any plans and specifications submitted pursuant hereto, which certificate shall be made by a licensed architect and/or professional civil engineer and shall certify that that structure proposed in such plans and specifications is structurally adequate to bear reasonably anticipated snow loads in the area of the Real Property. Also, within sixty (60) days after the receipt of the plans and specifications, the Committee shall approve or disapprove such plans and specifications which in its opinion do not conform to these restrictions or its esthetic standards. Approval or disapproval shall be made upon one of the copies thereof and returned to the address shown in the plans and specifications. In the event that no disapproval of such plans and specifications is given within sixty (60) days of submission in compliance herewith, such plans shall be deemed approved.

5. Disclaimer. The Committee may appoint advisory committees from time to time to solicit advisory opinions to advise it on matters pertaining to the Real Property. No person on the Committee or acting for it shall be responsible for any defect in any plan or specification submitted or approved nor for any defect in any work according to such plans and specifications.

6. Variations. The Committee shall have the authority to approve plans and specifications which do not conform to these restrictions in order to overcome practical difficulties or prevent hardships in the application of these restrictions; provided, however, that such variations so approved shall not be materially injurious to the improvements of other Lots and shall not constitute a waiver of the restrictions herein contained but shall be in furtherance of the purposes and

intent of these restrictions. This section shall not supercede Article III, Paragraphs 3b and 3c.

ARTICLE V - SNOWBLAZE RECREATIONAL CLUB, INC.

1. Club Membership. The Snowblaze Recreational Club, Inc., a non-profit corporation (herein defined as the Club), has been formed for the purpose of furnishing and regulating road maintenance, snow removal services, recreational facilities and providing such other services and facilities for the benefit of the owners and residents of Lots as may be deemed advisable. There shall be one membership in the Club for each Lot of the Plat and no more. Each Membership for a Lot shall be appurtenant to the title and shall be transferable only as part of the transfer of the title to a Lot. Each membership shall entitle the owners of the Lot, the residents therein, and their families to enjoy the service and facilities of the Club subject to the rules, regulations and payments as may now or hereafter be established by the Club, which rules, regulations and payments shall apply equally to all memberships. Nothing herein shall preclude the Club from making its services and facilities available to such others as it deems advisable. In any event Declarant shall have the right by written instrument placed of record to include the Real Property in proximity of the mountain to membership in the Club, when developed as platted lots, condominiums, commercial facilities or otherwise.

2. Clubs Default. In the event the Club herein referred to shall default in the maintenance of the roads, snow removal, utilities, or maintenance of Club facilities, the obligation for such maintenance shall be and remain the obligation of each Lot owner in the Plat on a pro rata basis together with the condominium and commercial owners as their recorded interest require and as determined by the Project Engineer.

3. Reservations/Compliance. Portions of the Real Property, if any, used by the Club shall not be subject to the restrictions elsewhere

imposed herein but shall be used for such facilities as the Club deems advisable for the benefit of its members. In the event that the Club is lawfully dissolved and its assets liquidated then the restrictions provided for elsewhere herein shall be effective as to such properties. By accepting conveyances or leases of property in the Plat, the Club's membership or lot owner agree to comply with the provisions of this .

Article V.

4. Assessments. In order to provide the Club with the funds for the cost of furnishing services and maintaining its various properties and utilities, each grantee and vendee of Lots, their heirs, successors and assigns shall and do by act of accepting a deed or entering into a contract of sale as vendee, jointly and severally agree that they and each of them shall accept and take membership in the Club and shall pay to the Club the assessments, dues and charges levied according to the By-Laws of the Club, herein incorporated by reference and made a part hereof. In the event that such assessments, dues or charges remain unpaid to the Club by membership for a period of sixty days after the due date then the Club or Declarant may record a written notice with the Auditor of Spokane County, Washington that it claims a lien against the Lot to which the membership is appurtenant for the amount of delinquent assessments, dues and charges due from such membership together with interest at the rate of ten percent (10%) per annum from the due date until paid and attorney's fees incurred incident thereto. From and after recording such notice, the Lot to which the membership is appurtenant shall be subject to a lien to the Club as security for the sums designated in such notice together with any other unpaid assessments, dues and charges which may accrue thereafter with interest and attorney's fees until satisfied of record and such lien may be foreclosed in the manner of a mortgage of real property and in such foreclosure action the Club

or Declarant shall recover a reasonable sum as attorney's fees therein and the reasonable costs of a searching and abstracting the public records. No satisfaction made of record or foreclosure shall constitute a release of the Club's right hereunder with respect to future delinquent assessments, dues and charges. The amount of the assessments and dues which the Club may assess or charge its membership shall be based upon the anticipated costs of operating the Club and maintaining the roads, recreational facilities, and providing for snow removal and utilities with reasonable provision for reserves, all as determined by the directors of the Club. All Club recreational facilities wherever shall be available for usage by all Lot owners and club members and their guests. The Club may make reasonable charges for services and utilities furnished by it to its membership in addition to dues and assessments. All dues, assessments and charges shall apply on the same basis to each Lot membership. In determining dues and assessments, the aggregate cost of snow removal and other utilities for the Plat shall be allocated equally to each Club member who is a Lot owner. There shall be no snow removal during 1974-1975 skiing season or thereafter until a completed dwelling is erected, unless otherwise agreed in writing.

ARTICLE VI - EASEMENTS AND RESERVATIONS

1. Easement of Enjoyment. Every Lot owner shall have a right to the enjoyment in and to the Club Properties and such rights shall be appurtenant to and shall pass with title to every Lot.

2. Easement for Ingress and Egress. Every Lot owner, club members, declarant, their invitees and licensees are hereby granted a nonexclusive easement to ingress and egress over and across the roads to said Plat and to Club facilities which easements of ingress and egress shall be appurtenant to each Lot, said easement is provided for on face of the Plat, provided, however, that Declarant reserves to itself, its successors and assigns, the right to grant such other rights of way and easements

within said Plat, for the use of such roads and easements for such purposes and uses, including access and utilities, and on such terms and conditions as it deems advisable including surface lifts and tramways and the installation thereof. No snow removal shall be provided in local access easements as shown on final plat.

3. Easement for Utilities and Drainage. There is hereby granted to Declarant, subject to concurrence with the Architectural Control Committee, Spokane County Engineers, Planning Director and Health Director, the right to easements for utilities and drainage, with access upon such terms and conditions as it deems advisable over, across and under the Real Property, exclusive of approved subsurface drainfield and reserve areas as of record with Spokane County Health District. Inland Power and Light and Pacific Northwest Bell are hereby granted an easement for installation and maintenance of underground utilities within the right of way and within 5 feet of all property lines of said lots with restoration of any damages, being the sole responsibility of the utility involved.

4. Common Skiing Easement. A common easement is reserved over all Lots as described by the Plat of Snowblaze for the purpose of providing the Lot owners, their invitees, and licensees with common access over such Real Property of Snowblaze, while skiing between their respective Lot or Lots and the ski area of Mt. Spokane. It is intended that all Lot owners, their invitees and licensees shall make reasonable use of such right of access granted under this easement.

5. Snow Removal Easement. Declarant reserves the right to plow snow from any road on this Plat onto any Lot for the purpose of ingress and egress.

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ARTICLE VII - GENERAL PROVISIONS

1. Effect. The covenants, restrictions, easements, rights, liens and encumbrances herein provided for shall be covenant running with the land and shall be binding upon the Real Property and any and all parts thereof, the parties in interest thereto and their heirs, assigns, personal representatives and successors in interest. Accepting an interest in and to any portion of the Real Property shall constitute an agreement by any person, firm or corporation accepting such interest, that they and each of them shall be bound by and subject to the provisions hereof.

2. Enforcement. The parties in interest in and to any part of the Real Property and the Club, for the benefit of the owners of the Real Property and each of them shall have the right and authority to enforce the provisions hereof and in addition to any other remedy for damages or otherwise, shall have the right to injunctive relief. Except for the foreclosure of the lien provided for in Paragraph 4 of Article IV the prevailing party in any action to enforce any provision hereof shall recover a reasonable sum as attorney's fees together with the reasonable costs of searching and abstracting the public record which sums shall be paid by the unsuccessful party.

3. Severability. In the event that any provision hereof shall be declared to be invalid by any court of competent jurisdiction, no other provision shall be affected thereby and the remaining provisions shall remain in full force and effect. No waiver of the breach of any provision hereof shall constitute a waiver of a subsequent breach of the same provision or of any other provision. No right of action shall accrue from or on account of the failure of any person to exercise any right hereunder nor for requiring compliance with any provision, conditions, restriction or covenant which may be determined unenforceable.

MT. SPOKANE CHAIR LIFT, INC.

By Ed E. Caley President

By Ethel S. Kirby Secretary

STATE OF WASHINGTON)
County of Spokane)

SS.

On this 22 day of May, 1974, before me personally appeared ROCK E. CALEY and ETHEL S. KIRBY, to me known to be the President and Secretary, respectively, of MT. SPOKANE CHAIR LIFT, INC., the corporation that executed the within and foregoing instrument, and acknowledged said instrument to be the free and voluntary act and deed of said corporation, for the uses and purposes therein mentioned, and on oath stated that they were authorized to execute said instrument and that the seal affixed is the corporate seal of said corporation.

In witness whereof I have hereunto set my hand and affixed my official seal the day and year first above written.

Edw J McConkey
Notary Public in and for the State
of Washington, residing at Spokane

FILED OR RECORDED
REQUEST OF Northwest Properties
JUL 25 2 32 PM '74
VERNON W. OHLAND, AUDITOR
SPOKANE COUNTY, WASH.
DEPUTY W McConkey

Rever & Garland
1700

AMENDED
DECLARATIONS OF RESTRICTIONS, COVENANTS,
AND EASEMENTS FOR SNOWBLAZE RECREATIONAL
TRACTS DIVISION I SPOKANE COUNTY

WHEREAS Mt. Spokane Chairlift, Inc., a Washington Corporation, filed a Declaration of Restrictions, Covenants, and Easements for that Real Estate described, called and recorded in Plat Book 11, pages 93 and 94, and filed under Auditor's file# 7407250139, Vol. 201, page 1845-1860.

WHEREAS said Declaration provides in Article VIII entitled "amendments" that said covenants may be amended by a vote of 75% of said lots with approval of the Declarant.

WHEREAS Article I and Article V define the word "club" and provide for mandatory membership in Snowblaze Recreational Club, Inc., a non-profit work corporation which has agreed to provide services for the Declarant.

WHEREAS, Snowblaze Recreational Club, Inc. has not provided services to Declarant from the date of the original platting, and Declaration referred to above, and it is the desire and intention of the Declarant and contract purchasers to amend the Declaration described above to provide as follows:

ARTICLE I AMENDED

5. The word "club" shall hereafter refer to the Snowblaze Recreational Tracts Association formed for the purpose of providing utilities services and recreational facilities to its members and residents of said tracts herein defined.
7. "Club Properties" shall hereafter be referred to as Association Properties, and any reference to "club" shall be construed to be defined as "Association" consisting of all of the owners of record, including contract purchasers.

ARTICLE V AMENDED

ARTICLE V - SNOWBLAZE RECREATIONAL TRACTS ASSOCIATION

1. ASSOCIATION MEMBERSHIP. The Snowblaze Recreational Tracts Association has been formed for the purpose of furnishing and regulating road maintenance, snow removal services, and recreational facilities, and providing such other services and facilities for the benefit of the owners and residents of Lots as may be deemed advisable. There shall be one membership in the Association for each Lot of the Plat and no more. Each membership for a Lot shall be appurtenant to the title and shall be transferable only as part of the transfer of the title of the Lot. Each membership shall entitle the owners of the Lot, the residents therein, and their families to enjoy the service and facilities of the Association subject to the rules, regulations, and payments as may now or hereafter be established by the Association, which rules, regulations, and payments shall apply equally to all memberships. Nothing herein shall preclude the Association from making its services and facilities available to such others as it deems advisable. In any event, Declarant shall have the right by written instrument placed of record to include the Real Property in proximity of the mountain to membership in the Association when developed as platted lots, condominiums, commercial facilities or otherwise.

2. ASSOCIATION DEFAULT. In the event the Association herein referred to shall default in the maintenance of the roads, snow removal, utilities, or maintenance of Association facilities, the obligation for such maintenance shall be and remain the obligation of each Lot owner on the Plat on a pro rata basis as their recorded interest require, and as determined by the Project Engineer.

3. RESERVATIONS/COMPLIANCE. Portions of the Real Property, if any, used by the Association shall not be subject to the restrictions elsewhere imposed herein but shall be used for such facilities as the Association deems advisable for the benefit of its members. In the event that the Association is lawfully dissolved and its assets liquidated, then the restrictions provided for elsewhere herein shall be effective as to such properties. By accepting conveyances or leases of property in the Plat, the Association membership or lot owner agree to comply with the provisions of this Article V.

4. ASSESSMENTS. In order to provide the Association with the funds for the cost of furnishing services and maintaining its various properties and utilities, each grantee and vendee of Lots, their heirs, successors and assigns shall and do by act of accepting a deed or entering into a contract of sale as vendee, jointly and severally agree that they and each of them shall accept and take membership in the Association and shall pay to the Association the assessments, dues, and charges levied according to the By-Laws of the Association, herein incorporated by reference and made a part hereof. In the event that such assessments, dues, or charges remain unpaid to the Association by membership for a period of sixty days after the due date then the Association or Declarant may record a written notice with the Auditor of Spokane County, Washington that it claims a lien against the Lot to which the membership is appurtenant for the amount of delinquent assessments, dues and charges from such membership together with interest at the rate of ten percent (10%) per annum from the due date until paid and attorney's fees incurred incident thereto.

From and after recording such notice, the Lot to which the membership is appurtenant shall be subject to a lien to the Association as security for the sums designated in such notice together with any other unpaid assessments, dues, and charges which may accrue thereafter with interest and attorney's fees until satisfied of record and such lien may be foreclosed in the manner of a mortgage of real property and in such foreclosure action the Association or Declarant shall recover a reasonable sum as attorney's fees therein and the reasonable costs of a searching and abstracting the public records. No satisfaction made of record or foreclosure shall constitute a release of the Association's right hereunder with respect to future delinquent assessments, dues, and charges. The amount of the assessments and dues which the Association may assess or charge its membership shall be based upon the anticipated costs of operating the Association and maintaining the roads, and providing for snow removal and utilities with reasonable provision for reserves, all as determined by the Directors of the Association. All Association recreational facilities wherever shall be available for usage by all Lot owners and Association members and their guests. The Association may make reasonable charges for services and utilities furnished by it to its membership in addition to dues and assessments. All dues, assessments, and charges shall apply on the same basis to each Lot membership. In determining dues and assessments, the aggregate cost of snow removal and other utilities for the Plat shall be allocated equally to each Association member who is a Lot owner. There shall be no snow removal during 1974-'75 skiing season or thereafter until a completed dwelling is erected, unless otherwise agreed in writing.